

an act or omission of an employee of the public entity where the employee is immune from liability.
Gov. Code § 815.2.

Plaintiff alleges in ¶ 4 that it is unclear whether Defendant Jody Morgan was acting in her capacity as a representative of Fall Valley, or outside of her capacity as a representative and that she is named in both capacities. To the extent that the Third Cause of Action is alleged against Defendant Jody Morgain in her individual capacity, the Third Cause of Action survives the Demurrer made on that basis. However, as to the remaining Defendants and Jody Morgan in her official capacity, the Demurrer is sustained and there will be no leave to amend.

Failure to Attach Contract. The First, Second, Fourth, and Fifth Causes of Action are all based in some form on the existence of a contract between the parties. Plaintiffs did not attach the contract or include any verbatim terms. Defendants argue that *Otworth v. Southern Pac. Transportation Co.* (1985) 166 Cal. App. 3d 452, 459 holds that in all actions alleging a breach of contract, plaintiffs are required to attach the contract or allege verbatim its terms. Defendants cite to *Miles v. Deutsche Bank National Trust Co.* (2015) 236 Cal. App. 4th 394, which reasoned that *Otworth* read more into a statement in *Wise v. Southern Pacific Co.* (1963) 223 Cal. App. 2d 50 than was there and declined to follow *Otworth*. *Otworth* is still good law and has not been overturned by the California Supreme Court. The Court will follow *Otworth* which specifically held that “If the action is based on an alleged breach of a written contract, the terms must be set out verbatim in the body of the complaint or a copy of the written instrument must be attached and incorporated by reference.” *Otworth v. Southern Pac. Transportation Co.*, *supra* 166 Cal. App. 3d at p. 459. The Demurrer on the basis that Plaintiffs failed to attach the contract or state the verbatim terms is sustained with leave to amend. The most efficient manner in which Plaintiffs can remedy this deficiency is to attach the contract. Should Plaintiffs amend, the Court will be in a position to evaluate any claims by Defendants that Defendants Fall River Valley Fire Protections District is not a party to the contract.

Derivative Action. The Fifth Cause of Action for Declaratory Relief is derivative of the First, Second, and Fourth Causes of Action. For that reason, the same rulings above apply.

The Demurrer is sustained as to the First, Second, Third, Fourth, and Fifth Causes of Action. Leave to amend is granted with the exception of the Third Cause of Action as it relates to Defendant Fall River Valley Fire Protection District, Rick Gomes, and Jody Morgan in her official capacity. Plaintiffs are granted ten days leave to file a Second Amended Complaint. Rather than the Court modifying the proposed Order provided, Defendants shall provide an Order consistent with the Court’s ruling.

IN RE: KNIGHT

CASE NUMBER: 26CV-0211019

Tentative Ruling on Petition for Change of Name: Petitioner Noelle Knight seeks to change her name to Noelle Conger. No proof of publication has been submitted. The Court requires a Certificate of Publication from the publishing newspaper before the Petition may be granted. If the Certificate of Publication is provided, the Court intends to grant the Petition, vacate all future dates, and close the file. Additionally, Petitioner checked Item 6 of the Petition, however, based on the rest of the Petition, this appears to be an error. Petitioner will be asked to clarify whether Item 6 was checked in error.

MCCLOSKEY VS. ALMA JEAN JACKSON TRUST & TRUST AGENT, ET AL.

CASE NUMBER: 25CV-0209075

Tentative Ruling on Order to Show Cause Re: Sanctions: An Order to Show Cause Re: Sanctions issued on July 30, 2026 to all parties and counsel for timely file a Mandatory Settlement Conference Statement as required by CRC 3.1380(c) and Local Rule of Court 3.04. Both require a party to file a Mandatory Settlement Conference no less than five court days prior to a Mandatory Settlement Conference, which in this matter, was scheduled for

August 3, 2026. Plaintiff and Defendants each filed a written response that provides sufficient excuse for not filing the Mandatory Settlement Conference Statement. The Order to Show Cause is **DISCHARGED**. The Court notes that the matter is set for trial on October 6, 2026, however, Plaintiff's written response provides that the matter has settled and Defendants' provides that a settlement is close to being finalized. **An appearance is necessary on today's calendar to discuss whether the trial date should be vacated.**

IN RE: NORTON-CARTER

CASE NUMBER: 26CV-0210922

Tentative Ruling on Petition for Change of Name: Petitioner Trishia Lynn Norton-Carter seeks to change her name to Trishia Lynn Carter. All procedural requirements of CCP §§ 1275 et. seq. have been satisfied. The Petition is **GRANTED**. All future dates will be vacated and the file closed upon the processing of the Decree Changing Name.

ON DECK CAPITAL, INC. VS. CARTER

CASE NUMBER: 25CV-0209110

Tentative Ruling on Order to Show Cause Re: Sanctions: An Order to Show Cause Re: Sanctions issued on July 29, 2026 to Plaintiff On Deck Capital, Inc. and Counsel Gurstel Law Firm PC for failure to timely serve the Complaint in violation of CRC 3.110(b). The Complaint was filed on November 3, 2025. A Proof of Service of Summons has not been filed. The complaint must be served on all named defendants and proofs of service on those defendants must be filed with the court within 60 days after the filing of the complaint." CRC 3.110(b). Plaintiff did not file a written response to the Order to Show Cause. Without sufficient excuse for failing to timely serve, monetary sanctions are imposed against Plaintiff and Counsel in the amount of \$250. The clerk is directed to prepare the Order of Sanctions. Plaintiff is ordered to serve the Complaint and Summons. The matter will be on calendar on **Monday, November 16, 2026 at 9:00 a.m. in Department 63** for status of service. **No appearance is necessary on today's calendar.**

PEOPLE OF THE STATE OF CALIFORNIA VS. CHADWICK

CASE NUMBER: 26CV-0210291

Tentative Ruling on Motion to Set Aside Summary Judgment Discharge Forfeiture and Exonerate Bail: Defendant Financial Casualty & Surety, Inc. moves to set aside summary judgment, discharge forfeiture, and exonerate bail. The motion was filed on August 25, 2026, which is less than sixteen court days prior to today. The motion was not timely filed. CCP § 1005(b). The motion is **DENIED** without prejudice. No proposed order was lodged as required by Local Rule 5.17(D). Moving party shall prepare the order.

ROGHANI VS. AMERICAN HONDA MOTOR CO., INC.

CASE NUMBER: 24CV-0205967

Tentative Ruling on Motion to be Relieved as Counsel: Daniel Gopstein of Quill and Arrow, LLP moves to be relieved as counsel for Plaintiff Jasmine Roghani. CRC Rule 3.1362 provides the requirements for a motion to be relieved as counsel.

Service

The notice of motion and motion, the declaration, and the proposed order must be served on the client and on all other parties who have appeared in the case. The notice may be by personal service, electronic service, or mail.

(1) If the notice is served on the client by mail under Code of Civil Procedure section 1013, it must be accompanied by a declaration stating facts showing that either:

(A) The service address is the current residence or business address of the client; or

(B) The service address is the last known residence or business address of the client and the attorney has been unable to locate a more current address after making reasonable efforts to do so within 30 days before the filing of the motion to be relieved.